

**Superior Court of the State of California
County of Orange**

DEPT C20 TENTATIVE RULINGS

Judge Theodore Howard

The court will hear oral argument on all matters at the time noticed for the hearing. If you would prefer to submit the matter on your papers without oral argument, please advise the clerk by calling (657) 622-5220. If no appearance is made by either party, the tentative ruling will be the final ruling. Rulings are normally posted on the Internet by 4:00 p.m. on the day before the hearing.

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The Orange County Superior Court has implemented administrative orders, policies, and procedures noted on the Court's website to address the limitations and restrictions presented during the COVID-19 pandemic at Civil Covid-19. Due to the fluid nature of this crisis, you are encouraged to frequently check the Court's website at <https://www.occourts.org> for the most up to date information relating to Civil Operations.

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<https://occourtsapp.occourts.org/aci/checkin-results?dept=C20>

Date: May 21, 2026

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1.	Montero v. Trevino 25-1526889	Before the Court is a Motion to Quash Service of Summons brought by Defendant Anthony Trevino. For the reasons set forth herein, the motion is GRANTED. The Court notes initially that although there is no proof of service of the motion in the Court's file, plaintiff has expressly waived any objection on the grounds of defective service. (Montero Decl. ¶5 – "I

choose to waive the issue of service and proceed with the hearing on this motion as scheduled.”)

Turning to the merits, this action arises from a dispute over rightful possession of two cats. Plaintiff alleges that in August 2021, she agreed to Defendant having possession of the cats but that such was to be only temporary. Sometime thereafter Plaintiff decided she wanted the cats back and Defendant refused. This action was then filed in November 2025.

In this motion, Defendant, an Arizona resident, asserts the court lacks personal jurisdiction over him as it relates to Plaintiff’s complaint. Defendant submits evidence he has been a resident of Arizona since August 2021, he does not conduct business in California and does not have an office or employees in California. (Trevino Decl. ¶¶2-3) He also states that the two cats at the center of this litigation have resided in Arizona continuously since 2021. (Trevino Decl. ¶4)

“When a nonresident defendant challenges personal jurisdiction the burden shifts to the plaintiff to demonstrate by a preponderance of the evidence that all necessary jurisdictional criteria are met. [Citation.] This burden must be met by competent evidence in affidavits and authenticated documentary evidence. An unverified complaint may not be considered as an affidavit supplying necessary facts. [Citation.]” (*Ziller Elecs. Lab GmbH v. Superior Ct.* (1988) 206 Cal.App.3d 1222, 1232-33.)

In opposition, Plaintiff submits her own declaration wherein she states that prior to August 2021, she lived with defendant for one year in California. She also states that she is currently an Orange County resident and has communicated with the defendant at unspecified times since August 2021. Plaintiff does not dispute that the cats have resided with the Defendant in Arizona since August 2021.

Personal jurisdiction may be either general or specific for purposes of the minimum contacts inquiry. (*Snowney v. Harrah’s Entertainment, Inc.* (2005) 35 Cal.4th 1054, 1062.) Based on the foregoing evidence, Plaintiff asserts she has established general jurisdiction over Defendant. “For an individual, the paradigm forum for the exercise of general jurisdiction is the individual’s domicile; for a corporation, it is an equivalent place, one in which the corporation is fairly regarded as at home.” [Citation.] A court with general jurisdiction may hear any claim against that defendant, even if all the incidents underlying the claim occurred in a different State.” (*Bristol-Meyers Squibb Co. v. Superior Court* (2017) 582 U.S. 255, 262.) Here, the evidence is insufficient to establish Defendant’s contacts with California rise to the level to give the court general personal jurisdiction over Defendant.

Where a defendant’s contacts are not so pervasive as to exercise general jurisdiction over him, the defendant may still be subject to

		jurisdiction on claims related to its activities in California under a specific jurisdiction analysis. The inquiry focuses on the relationship between the defendant, the forum, and the litigation. (<i>Walden v. Fiore</i> (2014) 571 US 277, 283-284.) For the state to exercise jurisdiction over a defendant consistent with due process, "the defendant's suit-related conduct must create a substantial connection with the forum State." (<i>Id.</i> at p. 284; <i>Bristol-Myers Squibb Co. v. Sup.Ct. of Calif., San Francisco County</i> (2017) 582 US 255, 262-268.) Such "specific" personal jurisdiction requires a showing of: (1) purposeful availment—the out-of-state defendant purposefully established contacts with the forum state; (2) arising out of—the plaintiff's cause of action "arises out of" or is "related to" the defendant's contacts with the forum state; and (3) reasonableness—the forum's exercise of personal jurisdiction in the particular case comports with "fair play and substantial justice." (<i>Burger King Corp. v. Rudzewicz</i> (1985) 471 US 462, 477-478; <i>Vons Cos., Inc. v. Seabest Foods, Inc.</i> (1996) 14 Cal.4th 434, 446.) Plaintiff does not dispute that the defendant has resided in Arizona since August 2021. (<i>Fenton v. Bd. of Directors</i> (1984) 156 Cal.App.3d 1107, 1116 - "the test for determining a person's domicile is physical presence plus an intention to make that place his permanent home.") There is no evidence that Trevino has had any contact with California since August 2021 which related to the cats. There is no evidence the cats have resided anywhere but Arizona since August 2021. The alleged wrongful conduct of failing to return the cats occurred while Trevino and the cats resided in Arizona. While plaintiff argues the Defendant's acts were "expressly aimed at plaintiff, a resident of the forum state," such is insufficient. (<i>Walden v. Fiore</i> (2014) 571 U.S. 277, 289-90 - "mere injury to a forum resident is not a sufficient connection to the forum.") Accordingly, plaintiff has failed to establish facts showing either general or specific jurisdiction. The motion is therefore GRANTED and the plaintiff's complaint against Defendant Anthony Trevino is DISMISSED, without prejudice. <i>Mr. Trevino is ordered to give notice of this ruling.</i>
2.	Murphy v. General Motors, LLC 24-1403247	<i>(The Court will hear argument on the sanctions issue)</i>
3.	Marinez v. Garden Grove Post Acute LLC 24-1441969	<i>(No tentative, as this case appears to be related to 2 other matters in CX-102 and parties have failed to file required Notice of Related cases)</i>
4.	Mott v. Fortiva Financial, LLC 25-1476893	Before the Court is a motion to compel arbitration filed by defendant Fortiva Financial, LLC (Defendant) against plaintiff Lynda Mott (Plaintiff). For the reasons set forth below, the motion is DENIED. Defendant argues the Federal Arbitration Act ("FAA") applies. The FAA generally governs arbitration in written contracts involving interstate